

Introducing Broker Agreement

Trademax Global Limited
VFSC 40356

DATE OF AGREEMENT **[Effective Date]**

PARTIES

Trademax Global Limited, an International Company incorporated and registered under the laws of the Republic of Vanuatu (Registration No: 40356), having its registered office at 1276, Kumul Hwy, 1st Floor, Govant Building, Port Vila, Vanuatu (hereinafter referred to as the "**Principal**" or "**Trademax Global**").

AND

[Individual]

_____, of _____,

I.D. / Passport No. _____

OR

[Company]

_____, a company incorporated in _____

Company Registered No. _____.

Hereinafter referred to as **the Introducer**.

INTRODUCTION

The Introducer wishes to supply information about the Principal to persons and to refer persons as clients or potential clients to the Principal.

AGREEMENT

1. Definitions

Introducing Broker	This means any Introducer that the Principal may choose for the provision of services subject to this Agreement.

Client	This means any person that has been approved to open an account(s) (irrespective of type) with the Principal that is referred to the Principal by the Introducer.
Person	Individual(s), partnership(s) and/or company(ies).
Legislation	All Acts, Regulations, Codes of Practice and any relevant circular, directive, policy statement and the like issued by any government which apply to the provisions of this Agreement, including the *International Companies Act* (CAP 222*), Financial Dealers Licensing Act* (CAP 70) and *Dealers in Securities (Licensing) Act* (Cap.70) of the Republic of Vanuatu.
Confidential Information	Information concerning the organisation, business, finances, clients, suppliers, employees, affairs, transactions, trade secrets, operations, processes or dealings of the Principal which is not in the public domain and which is or may be received by the Introducer in connection with this Agreement.
Trademark	This means the Principal's and/or the Introducer's registered trademarks, including all other related trademarks, as they are locally and internationally recognised and protected under international and local laws.

2. Relationship

a. This Agreement constitutes the entire Agreement between the Parties, and no earlier representation or arrangement or agreement, written or oral, relating to any matter dealt with in this Agreement between the Parties shall have any force or effect before the Commencement date.

b. The Introducer must not do or say anything that will or is likely to damage or diminish the Principal's business reputation or brand name. This clause will survive the expiry or termination of this Agreement.

c. The Introducer must not at any stage, verbally, in writing or displayed on any form of communication, including marketing material, websites or any form of electronic media, that they are more than a referrer of the Principal and especially any reference that they are an Authorised Representative or in some way an authorised or recognised party of the Principal. The relationship is strictly between the Principal and the Introducer and noother party.

d. The Introducer acknowledges that he is not allowed to register a business that includes the "Trademax Global" and/ or "TRADEMAX" and/or "TMGM" name. Furthermore, the Introducer acknowledges that he is not allowed toregister and/or operate a domain name that includes the "Trademax Global" and/ or "TRADEMAX" and/or "TMGM" name.

e. The Principal may at its sole discretion, accept or decline any Client introduced by the Introducer.

f. In the event that a Client, initially introduced by the Introducer, remains inactive (without any trading activities) for a period exceeding 12 months, the relationship between the Client and

the Introducer may be considered invalid and non-binding. Any attempt by the Introducer to re-establish this relationship with the Client may also be considered null and non-binding, and any activities related to this attempt will be deemed null and void.

g. The Principal is not liable or responsible for any marketing and promotions initiated by the Introducer and for any costs or charges for such activities. The costs will be met by the Introducer.

3. Introducer Representation and undertaking

a. The Introducer will act as a mediator between the Principal and his referred Clients for introducing and/or explaining the services offered by the Principal to his Clients. As a mediator, the introducer will do all that is necessary in order for the Principal and his Clients to enter into a contract, including but not limited to carrying out the preparatory work necessary for the conclusion of an agreement between the Principal and the Client.

b. The Parties agree that nothing in this Agreement creates a relationship between them of employer/employee, principal/agent, a joint venture or a partnership, and each party shall be solely responsible for its own action or inaction. The Introducer is the agent of the Client it refers to Trademax Global and in that capacity is not the agent of Trademax Global. In performing the Introducing Broker Services under this Agreement, the Introducer is an independent contractor and as such is liable for any taxes, insurance contributions or any other assessments incurred by it in the course of business generally and in relation to this Agreement. Any existing agreements of a similar nature to this Agreement between the Introducer and Trademax Global are hereby cancelled except in respect of any pre-existing debts or benefits accrued under them.

c. The Introducer hereby undertakes to introduce prospective Clients with regard to the services offered by the Principal as specified in the **Principal's Disclosure Documents** (which shall include the Principal's Client Agreement, Client Application Form, and Risk Warning Notice). For the introduction of clients, the Introducer will endeavour and will carry out all necessary actions so as for the Principal to enter into an agreement with the referred Client.

d. The Introducer shall not provide any financial product advice or portfolio management services to his Clients. The Principal is not responsible and has no liability for any advice or recommendation, or decision provided by the Introducer to the client.

e. For the Introducer to be eligible for any fees with regards to the introduced Client must meet all requirements set in this Agreement, as well as the Introducer must ensure that he has mediated so as for the prospective Client and the Principal to enter into an agreement before the prospective Client opens an account with the Principal without the Principal utilising the distinct act of the mediation of the Introducer.

f. The Introducer is obliged to inform his introduced Clients of any fees or benefits received as well as any additional fees involved with regard to the service provided under this Agreement.

4. Introducer's Obligations

a. The Introducer has all requisite authority to enter into this Agreement and to be fully bound hereby, and all necessary action has been taken by him in connection herewith. The Introducer acknowledges and confirms that he can enter into this agreement and is approved and/or authorised and/or qualified under his local regulatory requirements to offer the service mentioned in this agreement. Where authorisation is required, the Introducer does take or will take steps to ensure it is appropriately authorised to perform the services under the Agreement.

b. The Introducer must (and must ensure its employees and their representatives) comply with the Principal's codes of practice, systems, policies and procedures and any reasonable direction as may be notified from time to time.

c. The Introducer is responsible for ensuring the accuracy of client attribution and its commission rates. It is the Introducer's duty to verify these details and maintain their correctness. The Introducer acknowledges and accepts that Principal will only trace the client's trading history for a period of up to the last 30 days for the purpose of commission adjustments. Any inaccuracies or discrepancies beyond this period will not be subject to adjustments by Principal.

d. If the Introducer is a company or other entity, the Introducer is duly organised, validly existing and in good standing under the laws of his jurisdictions.

e. The Introducer will permit the Principal to conduct audits of its activity under this Agreement and will provide the Principal with access to all relevant personnel files, correspondence, promotional material and other documents of any kind for this purpose upon request. The introducer will obtain any necessary consent to disclose personal information held in the documents it supplies to the Principal.

f. Introducer shall not issue, publish or disseminate (electronically or otherwise) any advertisement, marketing or promotional material referring to the Principal (or its affiliates) or its products or services without the Principal's prior consent. The Principal reserves the right at any time to withdraw its approval of promotional material by the Introducer. And if the Principal withdraws its approval to the approval of promotional material by the Introducer, Introducer undertakes to immediately stop distributing such promotional material.

g. The Introducer must not respond on behalf of the Principal to any enquiries or requests for information received from the press relating to the Principal unless from time to time notified otherwise by the Principal in writing, decline to answer and refer all such enquiries and requests to the Principal.

h. Introducer shall notify the Principal in writing immediately upon becoming aware of any complaint or potential action/proceeding or regulatory investigation or sanction against the Introducer.

i. Duties in Relation to Regulator Request

   i. Upon receipt of any communication issued by or on behalf of any other government

agency or self-regulatory agency to the Introducer, any client of the Principal, the Introducer must give a copy of the communication promptly to the Principal.

ii. To the extent permitted by law, the Parties must assist each other in addressing any regulatory request by providing, immediately following receipt of a request in writing in that regard, a true copy of any and all correspondence, file notes, memoranda or other communication, notation or other written, electronic or recorded instrument in relation to the subject matter of the regulatory request in possess of the Introducer ("**Subject Documents**").

iii. In the event that any Subject Documents are in possession of a third party declines to hand over the Subject Documents in its possession to the Introducer, the Introducer must advise the Principal in writing of such refusal and must provide the name and address of the third party to the Principal whereupon the Principal may, in its absolute discretion, elect to directly contact such third party for the purpose of obtaining the subject Documents.

j. The minimum amount that the Introducer can withdraw from his/her IB account is 100 in the same currency as their IB account unless the IB account is closed, in which case the Introducer can withdraw the full balance in their IB account.

5. Principal's obligations

a. The Principal must provide the Introducer with the policies, procedures, templates and promotional materials with which it requires the Introducer to comply or to use.

6. Remuneration

a. The Introducer shall be paid for its services as agreed in this Agreement as per the below payment scheme: The commission will be paid in a one-day (T+1) settlement period, meaning once a trade executes and the commission is accrued, the settlement of the commission occurs one business day after the trade date (T+1). So, for example, if the commission is accrued on a Friday, it will be paid into the Introducer's IB account on Monday of the following week. In case of a holiday, it shall automatically be postponed to the first business day following the holiday.

b. Payment of commission may, where applicable, be adjusted, when the amount calculated is less than 0.01 of one (1) unit of the currency of the Introducer's IB Account. All commission calculations shall be rounded to the nearest hundredth according to the standard rounding rules (for example, a rebate amount of 5.134 shall be rounded to 5.13, 5,135 shall be rounded to 5.14, 0.004 shall be rounded to 0, 0.005 shall be rounded to 0.01). For avoidance of doubt, any calculation commission amount that is less than 0.005 of one (1) unit of the currency of the Introducer's IB Account shall be deemed non-payable and will not be accumulated, carried forward, or paid. The Introducer acknowledges and accepts that minor rounding adjustments under this clause shall not constitute a breach or give rise to any claim or complaint against the Principal.

c. The Introducer shall be entitled to the fees as stated in the 'Rebate Rate Setting' section on the 'IB Profile' page in your TMGM IB Portal, which may be subject to the changes by the Principal with ten (10) days notice prior to the changes coming into force.

d. In the event of any dispute, or complaint from a Client, the Principal has the right to hold back any fees due to the Introducer until such issues are resolved.

e. In the event that the Principal identifies or suspects any abuse on the trading activity of the Introducer by himself or acting together, such as:

Taking unfair advantage of the Principal's introducing broker program and/or any other promotional programs, arbitrage conducts including but not limited to extracting the economic profits generated of any kind (including gifts given under a promotional program of the Principal) without exposure to economic risks, and

i. Opening and closing trades instantly for the purpose of generating commissions, or
ii. Conducting any other abusive behaviour.

f. The Principal reserves the right to place a time limitation on the Introducer's and his/her clients' (who are relevant to abuse) profile, close the trading account temporarily for investigation or permanently, cancel or forfeit any trading profits made by the relevant clients and/or the Introducer through the abuse, and/or withhold payment.

7. Amendment and Termination

a. This Agreement may be amended by the Principal from time to time. The Principal shall notify the Introducer of any changes in the Agreement at least five (5) business days prior to the amendments coming into force. Should the Introducer disagree with the changes, he may terminate the Agreement in accordance with para. 7.C below.

b. The Principal may terminate the authority granted to the Introducer under this Agreement immediately without notice if the Introducer:

i. Breaches any legislation;

ii. If the Principal reasonably suspects that the Introducer conducts any abuse on the Principal's introducing broker program or takes unfair advantage of the Principal.

iii. If the Principal reasonably considers that the Introducer commits any serious or persistent breach of any of the provisions of this Agreement or any policy or procedures with which the Principal from time to time requires the Introducer to comply;

iv. Duo to any malpractice, failure or other significant events, including liquidation or insolvency, on the part of the Introducer; and

v. Where the Principal is advised of or identifies that the Introducer has promoted to any party that their relationship with the Principal is any greater than that provided in this Agreement.

c. This Agreement may be terminated:

i. By either party giving the other party seven days' notice in writing; or

ii. If the Principal reasonably considers that Introducer is acting in a manner which is

unprofessional, unethical or likely to harm the professional standing of the Principal, the Principal gives the Introducer 7 days' notice in writing.

d. The Introducer must notify the Principal immediately if any event occurs which would entitle the Principal to terminate this Agreement or suspend the authorities conferred by this Agreement.

e. On termination of this Agreement, the Introducer must:

i. Return to the Principal all forms of documentation, promotional material, policies, procedures and templates that the Principal has provided to the Introducer for this Agreement;

ii. Immediately cease providing information about the Principal and how to contact the Principal; and

iii. Immediately pay any money due to the Principal and request payment of any remuneration due to the Introducer as at the termination of this Agreement.

8. Governing Language

a. This Agreement, as well as any additional agreement hereto (both present and future), are made in English. Any other language translations are provided as a convenience only. In the case of any inconsistency or discrepancy between the original English texts and their translation into any other language, the original versions in English shall prevail.

9. Applicable Laws and Place of Jurisdiction

a. This agreement and all transactional relations between the Principal and the Client are governed by the Law of the Republic of Vanuatu.

b. The Introducer and the Principal submit to the exclusive jurisdiction of the Republic of Vanuatu. To the avoidance of doubt, paragraph 9.A does not prevent the Principal from commencing the proceeding in any other relevant jurisdiction.

10. Confidential Information

a. Except as required by law or by a regulatory authority, the Introducer must not divulge, allow to be divulged or make use of any Confidential Information other than for the purposes of this Agreement.

b. The Introducer shall treat the Confidential Information as confidential and take every reasonable precaution and use all reasonable efforts to prevent the unauthorised disclosure of the same. The Introducer agrees to take all steps reasonably necessary and appropriate to ensure that their employees, agents, and/or assistants treat all information as confidential and to ensure such employees, agents, and/or assistants are familiar with and observe at least the similar standards as under this clause to keep the information confidential.

c. This clause will survive the expiration or termination of this Agreement.

d. Upon termination of this Agreement, the Introducer must destroy or deliver to the Principal

any Confidential Information that was made available or in the possession or control of the Introducer under or in anticipation of this Agreement.

11. Consent

a. The Principal may give or withhold approval or consent to be given under this Agreement at its absolute discretion. The Principal is not obliged to give the Introducer reasons for giving or withholding consent.

12. Indemnity

a. The Introducer agrees to indemnify and to keep indemnified the Principal against any costs, claims, losses, or demands (including legal costs and expenses on a full indemnity) that the Principal suffers directly or indirectly as a result of the Introducer's breach of this Agreement.

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EXECUTED as an Agreement

Principal

Executed by **Trademax Global Limited** (VFSC 40356) in accordance with its Constitution in the presence of:

……
Signature/ Sea

……
Date

Introducer

*[If an individual]

……	……
Signature of Introducer	Full Name of Introducer
……	……
Signature of Witness	Date

*[If a company]

Executed by

In accordance with its Constitution in the presence of:

……	……
Director	Director/Secretary
……	……
Full Name (Print)	Full Name (Print)
……	……
Date	Date